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New laws trigger a fresh legal fight over Nazi-looted art

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LOS ANGELES — Jewish heirs of Holocaust victims and their representatives have filed two lawsuits in California staking their claims to Nazi-looted paintings that still hang on the walls of prominent museums in Los Angeles and Auschwitz.

This pair of lawsuits are the first to be filed after the recent passage of laws by California and Congress, which strengthen U.S.-based claims to artwork that was forcibly taken from Jewish families during World War II.

One lawsuit was filed in Los Angeles Superior Court on Monday by the Jewish Federation of Greater Los Angeles and its boarhair Daniel Gryczman against the Norton Simon Museum in Pasadena for the return of “Adam and Eve,” two life-size oil-on-panel masterpieces created by Lucas Cranach the Elder in 1530.

The other lawsuit was filed in federal court in Los Angeles the same day by the daughters of the late Dinah Gottliebova Babbitt, a Holocaust survivor and California-based animator who was held in Auschwitz. It demanded the return of watercolors of fellow prisoners that the artist was forced to paint for Josef Mengele, a Nazi physician who had earned the nickname the “Angel of Death.”

Spokespersons for both museums say the museums legally hold titles to the works, and intend to continue displaying them to the public. The lawsuits don’t specify the monetary value of the paintings.

The issue of Nazi-looted art is an emotional, legally and ethically charged topic that pits Jewish families who have suffered intergenerational trauma against museums that say they are trying to preserve a painful, yet important, chapter of history. Between 1933 and 1945, the Nazi regime orchestrated the largest art theft in world history, seizing over 600,000 works of art across Europe from Jewish families, collectors and museums. Decades later, many of these masterpieces reside in prominent museums around the world, making the push for their recovery more complex than a simple property dispute.

Rabbi Noah Farkas is president and CEO of the Jewish Federation of Los Angeles, the organization to which Marei von Saher, sole heir of Dutch Jewish art dealer Jacques Goudstikker, has signed over her rights. The paintings were seized from Goudstikker’s collection by Hermann Göring, Adolf Hitler’s second-in-command, and changed hands a number of times before being sold in the 1960s to the Pasadena Museum of Modern Art, which was renamed the Norton Simon Museum in honor of its benefactor.

Farkas said the federation plans to use most of the net proceeds from the recovered art to provide much-needed help to the about 2,500 Holocaust survivors living in the Los Angeles area.

“These are incredibly beautiful European masterpieces stolen from a Jewish family to enrich the Nazi party and fund the war and death machine against the people,” he said. “It’s our honor to take on this role on behalf of the community and use most of the proceeds to help these elderly survivors live out the last years of their lives in dignity, comfort and peace — something their family members were denied during the Holocaust.”

Marei von Saher, in a statement, said she is grateful to the Jewish organization for taking up her family’s cause.

“This effort represents a meaningful step toward justice for Holocaust survivors and victims of Nazi-era atrocities,” she said.

California Assemblyman Jesse Gabriel, D-Woodland Hills, wrote Assembly Bill 2867, signed by Gov. Gavin Newsom in September 2024, which requires that the state law must apply in lawsuits brought by California residents or their heirs to recover art seized during the Holocaust or during other acts of persecution.

Gabriel, who co-chairs the California Legislative Jewish Caucus, introduced the legislation in response to a federal court ruling, which allowed the state-owned Thyssen-Bornemisza National Museum in Madrid to keep a Camille Pissarro impressionist masterpiece.

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